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CASE #	CASE NAME	HEARING NAME
CVRI2505836	MILLER vs CORONA-NORCO UNIFIED SCHOOL DISTRICT	MOTION TO REDACT MINOR CHILD'S IDENTIFYING INFORMATION

Tentative Ruling:

See Ruling above.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2603386	CROY vs CALIFORNIA BAPTIST UNIVERSITY	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Summary of Ruling: The Court grants the motion and stays the matter pending the resolution of arbitration.

Factual / Procedural Context:

Richard Croy ("Plaintiff") was hired as California Baptist University's ("Defendant") head basketball coach for their men's team. He resigned on 4/1/26. He argues that Defendant is attempting to impose an invalid non-compete provision in his employment agreement, which contains a liquidated damages/buyout obligation. The complaint asserts two causes of action – declaratory relief and injunctive relief.

Defendant brings this motion seeking to compel arbitration and stay this matter pending the resolution of arbitration. It argues that Plaintiff signed an arbitration agreement, which covers the claims in this lawsuit.

In opposition, Plaintiff argues that the employment agreement is invalid due to a non-compete clause. He contends the non-complete clause makes Defendant's arbitration agreement invalid too. He also asserts that the arbitration agreement is unconscionable.

In reply, Defendant contends that the arbitration agreement is not unconscionable. It argues that Plaintiff's argument on the merits of his claim is irrelevant to the determination as to whether there is a binding arbitration agreement.

Analysis:

The court must grant a petition to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP

§1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.)

The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. R. Ct. 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–219.) “[U]nless there is a dispute over authenticity, it is sufficient for a party moving to compel arbitration to recite the terms of the governing provision.” (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) A petitioner is not required to authenticate the respondent’s signature on an arbitration agreement as a preliminary matter in the moving papers and is only required to do so if the signature is challenged. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846.)

When a party moving to compel arbitration provides a copy of the alleged arbitration agreement that it purports to have the plaintiff’s signature, it meets its initial burden. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.) This burden has been met by Defendant. Defendant provides a copy of the arbitration agreement that appears to have Plaintiff’s signature. The agreement applies to “all claims arising out of the Employee’s application or candidacy for employment, employment with CBU and/or termination thereof, including, but not limited to claims for breach of contract (express or implied); . . . all claims for benefits; and claims for violation of any of the federal, state, or other government law, statute, regulation, or ordinance, . . .” (California Baptist University Arbitration Agreement, ¶ 1.). This agreement would cover the claims at issue in the complaint – the parties’ dispute regarding the employment agreement.

Plaintiff now has the burden to offer admissible evidence creating a factual dispute as to the authenticity of the signature. (*Iyere, supra*, 87 Cal.App.5th at 755.) He does not meet this burden. He does not dispute he signed the arbitration agreement. Instead, he argues that because the non-complete provision in the employment agreement is invalid, this makes the arbitration agreement invalid. Plaintiff cites to no authority that supports this assertion. Plaintiff’s reliance on *Loving & Evans v. Blick* (1949) 33 Cal.2d 603 is misplaced. This case pertained to a matter where the entire contract that contained an arbitration agreement was unlawful. (*Id.* at 609.) Plaintiff only argues the non-competition clause is unlawful. The employment agreement contains a severance provision, which specifically states “[e]ach term, condition, covenant or provision of this Agreement will be viewed as separate and distinct, and in the event that any such term, covenant or provision will be held by an arbitrator or a court of competent jurisdiction to be invalid, or is otherwise determined to be invalid or unenforceable, the remaining provision will constitute in full force and effect.” (Employment Agreement, ¶ 14.) As such, the parties have agreed to sever any invalid provisions and any defect with the non-compete provision would be severable. Additionally, “[i]f only a part of the contract is illegal, then the arbitrator decides the illegality issue.” (*Hotels Nevada, LLC v. Bridge Banc, LLC* (2005) 130 Cal.App.4th 1431, 1437.) As such, Plaintiff’s argument regarding illegality of the non-compete provision lacks merit.

Unconscionability:

Plaintiff also contends the agreement is unconscionable and asserts the motion should be denied on this basis. “Unconscionable arbitration agreements are not enforceable.” (*Wherry v. Award, Inc.* (2011) 192 Cal.App.4th 1242, 1245.) “To be voided on this ground, the agreement must be both procedurally and substantively unconscionable.” (*Ibid.*) “But they need not be present to the same degree.” (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*)). Rather, the court invokes a “sliding scale” to determine unconscionability: “The more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Ibid.*) “The burden of proving unconscionability rests upon the party asserting it.” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) Unconscionability is a question of law. (*Malone v. Superior Court* (2014) 226 Cal.App.4th 1551, 1562.)

Procedural unconscionability may be proven by showing oppression which is present when a party is given no meaningful opportunity to negotiate the terms of the contract which is presented on a take-it-or-leave-it basis. (*Wherry v. Award, Inc.*, *supra*, 192 Cal.App.4th at 1246.) Plaintiff contends that the arbitration agreement is procedurally unconscionable because it is a contract of adhesion. A contract of adhesion is a standardized contract that relegates the individual with less bargaining strength to take the agreement without negotiating the terms. (*Walnut Producers of California v. Diamond Foods, Inc.* (2010) 187 Cal.App.4th 634, 646.) However, Plaintiff provides no evidence that this is a contract of adhesion. No evidence is provided that he could not negotiate the terms of the employment or arbitration agreement. Defendant provides evidence that the employment agreement was negotiated between Plaintiff and Defendant. (Declaration of Dr. Ronald Ellis, ¶¶ 4 and 5.) This is the only argument made to support procedural unconscionability. Since no procedural unconscionability has been shown, Plaintiff’s entire unconscionability argument fails and this motion is granted.